

SOFTWARE-AS-A-SERVICE SUBSCRIPTION AGREEMENT

Agreement No. NB-2025-011

This Software-as-a-Service Subscription Agreement (this “Agreement”) is entered into as of February 01, 2025 (the “Effective Date”) by and between **Northbound Software Inc.**, a corporation with its principal place of business at 220 King Street West, Toronto, ON M5H 1K4, Canada (“Provider”), and **Kestrel Robotics Inc.**, with its principal place of business at 295 Hagey Boulevard, Waterloo, ON N2L 6R5 (“Customer”). Provider and Customer may be referred to individually as a “Party” and collectively as the “Parties.”

1. Definitions

“Service” means Provider’s cloud-based software platform made available to Customer on a subscription basis, together with any related documentation and updates.

“Authorized Users” means Customer’s employees or contractors permitted to access the Service on Customer’s behalf.

“Subscription Term” means the period during which Customer is entitled to access the Service, as set out in Section 3.

2. Grant of Access

Subject to the terms of this Agreement and Customer’s payment of the applicable fees, Provider grants Customer a non-exclusive, non-transferable, worldwide right to access and use the Service during the Subscription Term, solely for Customer’s internal business purposes and subject to the usage limits associated with the subscription plan set out in Section 4.

3. Term and Renewal

This Agreement commences on the Effective Date and continues for an initial term of twelve (12) months, ending on January 31, 2026 (the “Initial Term”). The Agreement shall automatically renew for successive twelve (12) month periods unless either Party gives written notice of non-renewal at least thirty (30) days prior to the end of the then-current term.

4. Subscription Plan and Fees

Customer subscribes to the **Growth** plan at an annual subscription fee of CAD \$4,800.00 (the “Subscription Fee”), stated in Canadian Dollars (CAD) and exclusive of applicable taxes. The Subscription Fee is fixed for the Initial Term.

5. Invoicing and Payment

Provider shall invoice Customer for the annual Subscription Fee in advance upon the Effective Date and upon each renewal. Undisputed invoices are payable within thirty (30) days of the invoice date. Late amounts may accrue interest at 1.5% per month or the maximum rate permitted by law.

6. Service Levels and Support

Provider will use commercially reasonable efforts to make the Service available with a monthly uptime of at least 99.5%, excluding scheduled maintenance and events beyond Provider’s reasonable control. Provider will provide standard technical support during business hours (Eastern Time).

7. Customer Responsibilities

Customer is responsible for the acts and omissions of its Authorized Users, for maintaining the confidentiality of account credentials, and for ensuring its use of the Service complies with applicable laws and the plan usage

limits. Customer shall not resell, sublicense, or reverse-engineer the Service.

8. Data Protection and Confidentiality

Each Party shall protect the other's Confidential Information using at least reasonable care and shall not disclose it except to personnel who need to know it for purposes of this Agreement. Provider shall implement commercially reasonable technical and organizational measures to protect Customer data and shall process personal data in accordance with applicable privacy laws, including PIPEDA.

9. Intellectual Property

As between the Parties, Provider retains all right, title, and interest in and to the Service. Customer retains all right, title, and interest in and to Customer data. No rights are granted except as expressly set out in this Agreement.

10. Warranties and Disclaimer

Each Party represents that it has the authority to enter into this Agreement. Except as expressly stated, the Service is provided "as is," and Provider disclaims all other warranties, whether express or implied, including implied warranties of merchantability and fitness for a particular purpose.

11. Limitation of Liability

Except for breaches of confidentiality or a Party's indemnification obligations, neither Party shall be liable for indirect, incidental, or consequential damages, and each Party's aggregate liability under this Agreement shall not exceed the total fees paid or payable by Customer in the twelve (12) months preceding the claim.

12. Termination

Either Party may terminate this Agreement for material breach that remains uncured thirty (30) days after written notice. Customer may terminate for convenience upon thirty (30) days' written notice; unless otherwise agreed in writing, prepaid fees are non-refundable. Upon termination, Customer's right to access the Service ceases and each Party shall return or destroy the other's Confidential Information on request.

13. Governing Law

This Agreement is governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein, without regard to conflict-of-laws principles. The Parties submit to the exclusive jurisdiction of the courts located in Toronto, Ontario.

14. Entire Agreement

This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior understandings. Any amendment must be in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PROVIDER

J. Marchetti

Northbound Software Inc.

By: Jordan Marchetti, VP Finance

Date: February 01, 2025

CUSTOMER

E. Vasquez

Kestrel Robotics Inc.

By: Elena Vasquez, Chief Operating Officer

Date: February 01, 2025